

Mauritius 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Mauritius during the year.

Significant human rights issues included credible reports of arbitrary arrest or detention and serious restrictions on freedom of expression and media freedom.

The government took credible steps to identify and punish officials who committed human rights abuses, but enforcement was not consistent.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

On October 22, an anonymous whistleblower under the pseudonym “Missier Moustass” leaked on social media an audio recording of a WhatsApp telephone conversation in which a voice purported to be that of former Commissioner of Police Anil Kumar Dip instructed the police forensic pathologist to declare the January 2023 death of Jacquelin Steeve Juliette a

natural death. Juliette's family alleged he died of injuries caused by the police Special Striking Team (SST) during a raid on his home, a view supported by a separate "Missier Moustass" audio recording in which a voice purported to be that of the SST leader, Assistant Superintendent of Police Ashik Jagai, told an unidentified police officer that Juliette died as a result of an assault by an SST member during the raid. The director of public prosecutions initiated a judicial inquiry into the matter, which continued at year's end.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media, but the government did not always respect this right.

The law prohibited expression made "with intent to stir up contempt or hatred against any section or part of any section of the public distinguished by race, caste, place of origin, political opinion, colour, creed, or sex." The

law also criminalized the posting on social media of anything that could cause “annoyance, humiliation, inconvenience, distress or anxiety to any person.” The law was infrequently used.

On September 28, police searched the house of Pravir Ramsoonder, an administrator of the Sel Solution Revolution Facebook page known for its criticism of the Militant Socialist Movement government. Police seized his mobile phone and took him to a police station for further questioning but did not press charges.

The law contained blasphemy provisions that criminalized “outrage against any religion legally established.” There were no reports of prosecutions under this law during the year.

Physical Attacks, Imprisonment, and Pressure

On August 13, media reported police summoned *channelnews.mu* chief editor Taariq Hussein Dooreemeah for questioning regarding a video he posted concerning a cold criminal case. Dooreemeah was released after the questioning.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

Opposition parties and independent media commentators regularly criticized the state broadcasting outlet Mauritius Broadcasting Corporation

for a perceived progovernment bias and unfavorable coverage of opposition parties. The Militant Socialist Movement-led government alleged antigovernment bias by most independent media.

The government maintained its ban of *The Satanic Verses* by Salman Rushdie and *The Rape of Sita* by Lindsey Collen. While bookstores could not legally import the books, individuals could buy them online without difficulty.

b. Worker Rights

Freedom of Association and Collective Bargaining

The constitution and law provided for the rights of all workers, including foreign workers, to form and join independent unions, bargain collectively, and conduct legal strikes. The law also prohibited antiunion discrimination. Freedom of association and the right to collective bargaining were generally respected by the government and most employers, and workers exercised these rights. Most unions collectively negotiated wages higher than those set by the National Remuneration Board. Worker organizations were independent of the government and political parties. There were no reports of government interference in union activities.

The law made no provision for self-employed workers to join unions. Most workers were free to form and join unions and to organize in all sectors,

including in the export-oriented enterprises (EOE), formerly known as the export-processing zone. Foreign workers were able to join unions, but only if they had a valid work permit. The law provided for a commission to investigate and mediate labor disputes, and a program to provide unemployment benefits and job training to all workers. The law allowed unions to conduct their activities without government interference.

The law established a mandatory, complex, and lengthy process for declaring a legal strike. This process called for labor disputes to be reported to the Commission for Conciliation and Mediation only after meaningful negotiations occurred and the parties involved reached a deadlock. If the parties reached no compromise, the workers could call a strike. The law required workers in many sectors to provide minimum service levels in the event of a strike, including sectors that international standards did not classify as essential services. The law prohibited strikes and other demonstrations during sittings of the National Assembly and did not allow unions to organize strikes at the national level or concerning general economic policy topics.

Worker participation in an unlawful strike was sufficient grounds for dismissal, but workers could seek a remedy in court if they believed their dismissals were unjustified. The law prohibited antiunion discrimination, but it did not provide for reinstatement of workers fired for union activity. The government effectively enforced applicable laws, but there were delays

in court procedures and appeals. Penalties for violations by employers were not commensurate with those for similar violations. Penalties were regularly applied against violators.

Despite the law, according to trade union officials, antiunion discrimination and dismissal remained a problem in the private sector. Some employers in the EOE reportedly continued to establish employer-controlled work councils for EOE workers, effectively blocking union efforts to organize. Approximately 36,700 persons worked in the EOE; only 10 percent belonged to unions.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The government established different minimum wage schedules. The lowest private-sector minimum wage was for nonmanagerial workers outside the EOE and was more than the official definition of poverty. The actual market wage for most workers was much higher than the minimum wage due to a labor shortage and collective bargaining.

The law provided for a standard workweek of 45 hours and paid annual

holidays, required premium pay for overtime, and prohibited compulsory overtime. By law employers could not force a worker outside the EOE to work more than eight hours per day, six days per week. A worker (other than a part-time worker or a watchperson) and an employer could agree, however, to have the employee work more than the stipulated hours without added remuneration, if the number of hours covered in a 14-day period did not exceed 90 hours or a lesser number of hours as agreed to by both parties.

The standard legal workweek in the EOE was 45 hours. Regulations required remuneration for those who worked more than their stipulated hours at one and a half times the normal salary rate. Those who worked during their stipulated hours on public holidays were remunerated at double their normal salary rate. The law did not prohibit compulsory overtime in the EOE. For industrial positions, regulations did not permit workers to work more than 10 hours a day. The law required the Ministry of Labour, Human Resource Development, and Training to investigate cases of overtime violations. If an employer failed to take action to address the violations, the ministry could initiate a court action.

Occupational Safety and Health

The government set appropriate occupational safety and health (OSH) standards for the main industries, and the responsibility for identifying unsafe conditions was with inspectors. By law workers could remove

themselves from situations that endangered health or safety without jeopardy to their employment, and authorities effectively protected employees in these situations; workers did not generally exercise this right. The government proactively identified unsafe conditions. Employers and employees alike did not always comply with safety regulations, according to media reports.

Wage, Hour, and OSH Enforcement

The government effectively enforced minimum wage laws and regulations, but trade unions reported this was not always the case for overtime and OSH laws. Ministry of Labour officials were responsible for the enforcement of wage and hour laws. Inspectors had the authority to make unannounced inspections, except at employer provided lodgings, and to initiate sanctions.

While the government generally enforced wages in the formal sector, there were reports employers demoted workers to part-time status to evade wage and hour requirements. Authorities generally applied these standards to both foreign and citizen workers except in the informal sector. Penalties for wage and hour violations were less than those for similar violations, and penalties were rarely applied in the informal sector. Unions reported cases of underpayment for overtime in the textile and apparel industries due to differences in existing legislation and remuneration orders for the calculation of overtime hours.

The ministry's labor and industrial relations officers, including labor inspectors in the Special Migrant Workers Unit, also inspected OSH compliance. Despite an increase in the number of inspectors in the Migrant Labor Unit, trade unions called attention to the fact that the number of officers remained insufficient to enforce compliance. Penalties for OSH violations were not always commensurate with those for similar violations and were regularly applied against violators. Wage, hour, and OSH violations were prevalent in the construction, agriculture, auto repair, and seafaring sectors.

According to a 2020 government report, the latest data available, informal workers made up 23 percent of the workforce. Labor laws applied to the informal sector, but authorities seldom enforced them and did not apply penalties.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The constitution and law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their

arrest or detention in court. The government in most cases observed these requirements.

The constitution and law required arrest warrants be based on sufficient evidence and issued by a magistrate. A provisional charge based on a reasonable suspicion allowed police to detain an individual up to 21 days with the concurrence of a magistrate, whom the law required to review the case within 48 hours of the arrest. Authorities generally respected these rights.

On April 4, media reported police arrested Alain Malherbe, a Mauritius Labor Party member, for alleged possession of stolen official documents from the government Ports Authority which he posted on social media. Malherbe, a critic of the government's maritime policies, claimed the documents were already in the public domain and published on a government website. He was released on bail the same day.

Lengthy pretrial detention was a problem, and the length of pretrial detention frequently equaled or exceeded the maximum sentence for an alleged crime. As of October, the nongovernmental organization World Prison Brief reported pretrial detainees represented 45 percent of the total prison population. Lawyers alleged pretrial detention could last at least three years due to court backlogs and the inability of some detainees to post bail. Courts credited time spent in pretrial detention against the sentence meted out.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution and law prohibited such practices, but allegations of police abuse were made via traditional and social media. There were no known cases available for citation, but some observers claimed authorities underreported incidents of police abuse.

Opposition parties and media raised concerns that the government did not always investigate and punish abusive officials, although some were prosecuted.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

The minimum legal marriage age was 18, and the government enforced the law effectively.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR). The country did not accede to the UN Convention or Protocol on Refugees and, according to UNHCR, had no legal or formal framework to protect refugees and asylum seekers. The government permitted refugees and asylum seekers to stay in the country provided UNHCR was willing to resettle them in another country. Refugee status determination was conducted virtually by a UNHCR office in South Africa.

Provision of First Asylum

The law did not provide for the granting of asylum or refugee status; however, the government collaborated with a church agency to provide shelter to refugees and asylum seekers while UNHCR identified a country

willing to receive them.

d. Acts of Antisemitism and Antisemitic Incitement

According to the 2022 census, the Jewish community consisted of fewer than 100 persons, predominantly foreign residents. There were no reports of antisemitic incidents.